

HM Revenue and Customs
Corporation Tax Services
BX9 1AX
United Kingdom

17 September 2026

Dear Sir/Madam,

Appeal against late filing penalty determinations – Company tax reference 623 24114 14574

I am writing on behalf of Atoure Ltd to appeal against the penalty determinations issued on 2 September 2026 for the following periods, comprising both the tax-related and flat-rate late filing penalties charged for each period:

- 11 September 2023 to 10 September 2024 (ref A 01): tax-related penalty £953.97 plus flat-rate penalty £200.00, total £1,153.97
- 11 September 2024 to 30 September 2024 (ref A 02): tax-related penalty £79.50 plus flat-rate penalty £200.00, total £279.50

The total penalties under appeal are £1,433.97.

I am the sole director of Atoure Ltd and have personally managed all of the company's administrative and financial affairs since incorporation. For approximately three weeks before my hospital admission, I experienced worsening symptoms of nausea, fatigue, and loss of appetite, progressing in the final week to vomiting and breathlessness. On 7 September 2024 I was admitted as an emergency to the Royal Free Hospital, London, with diabetic ketoacidosis and a new diagnosis of diabetes mellitus, and was admitted directly to the Intensive Care Unit. During my admission I developed a bloodstream infection (Staph Aureus Bacteraemia), which required a further course of intravenous antibiotics and extended my hospital stay. I remained an inpatient, including a period in intensive care, until my discharge on 25 September 2024 – a total of 18 days, following a period of deteriorating health beforehand. This was an unexpected and out-of-the-ordinary medical emergency that left me unable to attend to the company's administrative affairs, including its filing obligations, both during this hospitalisation and for a period of recovery afterwards.

As I am the company's only director, with no other officer, employee, or agent able to act on the company's behalf during this time, this illness directly prevented the Company Tax Returns for the periods in question from being completed and filed. I have taken steps to bring the company's filings up to date as soon as I was able to do so following my recovery.

I enclose supporting documentation from Royal Free London NHS Foundation Trust confirming the dates and nature of this admission.

We have now taken steps to bring the company's filings up to date and are in the process of finalising a completed Company Tax Return and statutory accounts for the periods above, which will follow shortly and will supersede HMRC's determination of profits and tax due.

For context, the company's actual profits for these periods are modest and well within the small profits rate threshold, so the final Corporation Tax due is expected to be substantially lower than HMRC's determination, which appears to have applied the main rate rather than the small profits rate, once the return is filed.

We would be grateful if you would consider this appeal against both the tax-related and flat-rate penalties for both periods and, in the meantime, suspend collection of the penalties pending the outcome.

Yours faithfully,

Abdul-Malik Baba Toure
Director, Atoure Ltd